

LEASE

PROPERTY:

CHINTIN GRANGE
3054 ROMSY ROAD
CHINTIN VIC 3756

BRAND PARTNERS
COMMERCIAL LAWYERS
Level 2
4 Bank Place
Melbourne Vic 3000
Phone: 03 9602 5800
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Reference: TM:AC:9059

The Lessor leases the Land to the Lessee for the Term and at the Rent and on the conditions as set out in this Lease.

1. DEFINITIONS and INTERPRETATION

1.1. Definitions

Guarantor	means the person or persons named in item 11.
Item	means an item in the Schedule.
Land	means the Land and buildings and improvements thereon described in item 3 and includes the Lessor's Installations.
Lessee	means the person or company named in item 2 or any person or company to whom the Lease has been transferred.
Lessor	means the person or company named in item 1 or any other person or company who will be entitled to possession of the Land when this Lease ends.
Lessor's Installations	means any property of the Lessor, other than land or fixtures, from time to time on the Land and includes the installations listed in item 8 and those installed by the Lessor after the Lease starts.
Outgoings	means: (a) all usage charges for services including electricity, gas and water; (b) the costs of maintaining and repairing the buildings, fences and any other structures on the Land (c) any excesses paid or payable on any claims under any public liability insurance and/or building insurance taken out by the Landlord but does not include rates, taxes and water levies associated with the Land which will be payable by the Lessor.
Rent	means the amount stated in Item 4 as varied in accordance with this lease.
Term	means the period stated in Item 6.

1.2. Interpretation

- (a) References to laws include regulations, instruments and by-laws and all other subordinate legislation or orders made by any authority with jurisdiction over the Land.
- (b) An obligation imposed by this Lease or in favour of more than one person binds or benefits all of them jointly and each of them individually.
- (c) The use of one gender includes the others and the singular includes the plural and vice-versa.
- (d) If the Lessor, Lessee or Guarantor is an individual, this Lease binds that person's legal personal representative. If any of them is a corporation, this Lease binds its transferees.
- (e) "Include" and every form of that word is to be read as if followed by ("without limitation").
- (f) This Lease includes the Schedule.

2. RENEWAL

- 2.1. The parties acknowledge that this is a renewal of the lease entered into between the parties commencing on 1 March 2019 (**Original Lease**) and that references to 'the start of the Lease' or other similar expressions refer to the start of the Original Lease.

3. LESSEES OBLIGATIONS

- 3.1. The Lessee must:-

- (a) pay the Rent without any deductions to the Lessor in the manner stated in Item 5. No demand for Rent is necessary and the Lessor may direct in writing that the Rent be paid to another person;
- (b) pay the Outgoings when they are due;
- (c) use the Land and maintain the pastures and fences in a good and husband-like manner;
- (d) employ good, clean and husband like practices in cultivation and farming in accordance with the current standards of the district;
- (e) keep the Land well and properly fertilized and in a manner which is consistent with good Land management;
- (f) keep the Land properly pruned;
- (g) take all reasonable steps to keep the Land free of vermin and noxious weeds and comply with the laws relating to them;
- (h) give notice of all infectious illnesses to humans and livestock to the Lessor and all public authorities as required by law and in any case within two (2) business days of becoming aware of the illness, or of any additional cases;
- (i) comply at its own expense with the requirements of all public authorities under the law regarding fumigation, disinfection, eradication and prevention of such diseases and with all requirements regarding the quarantining of livestock and its use of the Land;
- (j) obtain at its costs any licences or consents required to occupy and use the Land in accordance with this Lease;
- (k) maintain any fire-breaks on the Land at the date of this Lease and such additional fire-breaks as may be necessary to prevent the spread of fire and comply with any direction of the municipality or responsible authority concerning fire prevention;

- (l) comply with all laws relating to the use or occupation of the Land;
- (m) keep any chemicals, inflammable fluids and other hazardous things on the Land in a safe and secure manner and in accordance with the law;
- (n) keep open, clean and clear of all weeds all creeks, drains, ditches and water courses on the Property;
- (o) keep all buildings and improvements on the Property in good and tenantable repair, order and condition;
- (p) permit the Landlord or the Landlord's agents at all reasonable times to enter upon and view the condition of the Property;
- (q) at any time within three calendar months prior to the expiration of the Term, permit the Landlord or his duly authorised agent to fix upon the Property a notice for reletting and permit persons with the written consent of the Landlord or his agents at reasonable hours of the day to view the Property;
- (r) pay on demand the Lessor's reasonable expenses of:-
 - (i) 50% of the costs of the preparation and execution of this Lease;
 - (ii) the change, transfer, surrender or ending of this Lease, except at the end of the Term, or where the change occurs at the Lessor's request;
 - (iii) the sub-letting of the Land;
 - (iv) any breach of this Lease by the Lessee;
 - (v) every application made by the Tenant for a consent or permission made necessary or required by this Lease, whether granted or refused; or
 - (vi) the exercise or attempted exercise by the Lessor of any right or remedy against the Lessee;
- (s) pay on demand interest at the rate prescribed by *the Penalty Interest Rates Act 1983* plus 7% from time to time on any Rent or other money which the Lessee has not paid within 7 days of the due date which interest will be calculated from the due date and continue until the overdue money is paid;
- (t) indemnify the Lessor in respect of any statutory charge paid by it as a result of the use of the Land by the Lessee;
- (u) immediately make good damage cause to the Land or adjacent property by the Lessee or its agents; and
- (v) in relation to the buildings on the Land:
 - (i) immediately replace glass which becomes cracked or broken;
 - (ii) immediately repair defective windows, light fittings, doors, locks and fastenings;
 - (iii) maintain in working order all plumbing, drainage, gas and sewerage installations; and
 - (iv) maintain and keep in good repair any heating, cooling or air conditioning equipment.

3.2. The Lessee must not and must not let anyone else:-

- (a) use the Land except for the purpose stated in Item 9;
- (b) do or permit anything in or upon the Land or any part of the Land which may be or become a nuisance, annoyance or damage to the Lessor or the occupiers or other property in the neighbourhood;
- (c) erect or make or permit to be erected or made any alterations in or additions to the construction or arrangement of the Land without the previous consent in writing of the Landlord;

- (d) make any alteration to the Land or the Lessor's installations without the Lessor's written consent;
- (e) create a fire hazard as a result of the use or occupation of the Land;
- (f) do anything which might affect any insurance policy relating to the Land or the Lessor's installations by causing:-
 - (i) it to become void or voidable;
 - (ii) any claim on it being rejected; or
 - (iii) a premium to be increased;
- (g) not cut down or remove any growing timber on the Land without first obtaining the consent of the Lessor;
- (h) permit the Land to become pugged or the structure of the soil on the Land to be damaged by livestock;
- (i) use any chemical treatment or spray which may adversely affect the use of the Land at the end of the Lease;
- (j) not commit or permit spoil or waste any of the Land;
- (k) not introduce or cause to be introduced any fodder, noxious weeds or other things which may affect the use of the Land at the end of the Lease;
- (l) excavate or remove timber, gravel, top soil or other materials from the Land without first obtaining the permission of the Lessor;
- (m) do any act, matter or thing which may become a breach of any statute regulation or by-law;
- (n) not use the outer walls or windows of any building on the Land for the purpose of any public announcement or to exhibit any signboards or any external indication of business, except lettering or signs of a form and character to be approved by the Lessor;
- (o) not hold or permit to be held any sale by auction on the Land without the previous consent of the Lessor; and
- (p) at the expiration or sooner determination of the said Term or any extension of the Term:
 - (i) at the request of the Lessor and at the Lessee's own expense, remove all advertisements signs and notices which have been painted on displayed or affixed to any portion of the Land and to make good any damage or disfigurement caused to the Land by such removal;
 - (ii) peaceably surrender and yield up to the Lessor the Land together with any additions in such repair and condition as the Lessee is liable to maintain the same under the provisions of this agreement; and
 - (iii) leave the Land in a clean and good-hearted condition.

4. REPAIRS and MAINTENANCE

- 4.1. The Lessee must repair and maintain any buildings and improvements and all fences, tracks, roads, bores, windmills, water pumps, dams and drains on the Land and keep them in the same condition as at the start of the Lease (fair wear and tear excepted).
- 4.2. The Lessee must comply with all notices or orders affecting the Land which are issued during the Term except any notices or orders that applicable legislation makes the responsibility of the Lessor.
- 4.3. The Lessee must:-
 - (a) promptly give written notice to the Lessor of -

- (i) damage to any of the Lessor's Installations;
 - (ii) damage to the Land; and
 - (iii) service by any authority of a notice or order affecting the Land;
- (b) permit the Lessor, its agents or workers to enter the Land:-
 - (i) to inspect the Land;
 - (ii) carry out repairs or agreed alterations;
 - (iii) to do anything necessary to comply with notices or orders of any authority;
 - (iv) plant trees; and
 - (v) water and maintain plantations;
- (c) carry out repairs within 14 days after being served with a written notice of any defect or lack of repair which the Lessee is obliged to make good under this Lease. If the Lessee does not comply with the notice, the Lessor may carry out the repairs and the Lessee must repay the cost to the Lessor on demand;
- (d) comply with all the requirements of all statutes, regulations and by-laws in relation to the Lessee's use of the Land, provided that the Lessee is not required to carry out any works of a structural nature.

4.4. Despite anything to the contrary contained in this Lease:

- (a) The Lessee is obliged to carry out structural repairs and works of a capital nature if the value of the works required is less than \$10,000.00 or if more than \$10,000 and the need for them arises from:
 - (i) negligence by the Lessee or its employees, agents, contractors, customers or visitors; or
 - (ii) failure by the Lessee to perform its obligations under this Lease; or
 - (iii) the Lessee's use of the Land.
- (b) If the value of any works is greater than \$10,000 and is not required due to clause 4.4(a)(i)(ii) or (iii) (**Proposed Works**) the Lessee must provide a written request to the Lessor detailing the Proposed Works, why the Proposed Works are required and the anticipated cost of the Proposed Works (**Works Notice**).
- (c) Upon receipt of the Works Notice the Lessor will consider the Proposed Works and decide whether the Lessor will undertake the Proposed Works, in whole or in part, having regard to its legal obligations under the Lease and any applicable legislation. The Lessor may at its discretion set any conditions regarding the carrying out of the Proposed Works.
- (d) The Lessor will advise the Lessee of its decision under clause 4.4(c) within 14 days of receipt of the Works Notice.

5. TRANSFER OF LEASE AND SUB-LETTING

- 5.1. The Lessee must not transfer this Lease or sub-let the Land without the Lessor's written consent.
- 5.2. The Lessor must not unreasonably withhold its consent to a transfer of this Lease or a sub-Lease of the Land if the Lessee has complied with the conditions in clause 5.3.
- 5.3. To obtain the Lessor's consent to a transfer or sub-Lease the Lessee must:-
 - (a) ask the Lessor in writing to consent to the transfer or sub-Lease;
 - (b) give the Lessor —
 - (i) in relation to each proposed new Lessee or sub-lessee, its name and address, two written references as to its financial circumstances and two written references as to its farm management experience; and
 - (ii) a copy of the proposed document of transfer or sub-Lease; and
 - (c) any other documentation reasonably requested by the Lessor.
- 5.4. The new lessee or sub-lessee and the directors of them if they are a corporation must execute a deed binding each of them to carry out the obligations of the Lessee under this Lease and a guarantee and indemnity.
- 5.5. The Lessee must pay the Lessor's reasonable expenses incurred in connection with the application for consent or the granting of consent and the completion of the documents.
- 5.6. The Lessee must not give up possession or share occupancy of the Land or grant a licence to anyone else without the Lessor's written consent which may be given or withheld in the Lessor's discretion.
- 5.7. The obligations to the Lessor of every Lessee who has transferred this Lease continue until the Lease ends.

6. LESSOR'S OBLIGATIONS

- 6.1. The Lessor must:
- (a) while the Lessee observes his covenants under the Lease, allow the Lessee to peaceably hold and enjoy the Land during the Term without any unlawful interruption or disturbance by the Lessor or any person rightfully claiming to act on behalf of the Lessor;
 - (b) permit the Lessee at any time during or upon the expiration of the Term to:
 - (i) remove and take away the Lessee things (the Lessee nevertheless repairing any damage which may be occasioned to the Land) whether falling within the legal category of trade or Lessee fixtures or not; or
 - (ii) sell all or any of such things to any succeeding or incoming Lessee.

7. INSURANCE

- 7.1. The Lessee must take out and keep current insurance in the names of the Lessee and the Lessor for public risk for the amount of \$20 million with an extension which includes the indemnities given by the Lessee to the Lessor.
- 7.2. The Lessee must produce satisfactory evidence of insurance cover on written request by the Lessor.

8. GENERAL AGREEMENTS BETWEEN LESSOR and LESSEE

- 8.1. When the terms ends the Lessee must:-
- (a) return possession of the Land to the Lessor; and
 - (b) remove the Lessee's installations and other property from the Land and make good any damage caused in removing it.
- 8.2. If the Lessee leaves any of its installations or other property on the Land after the end of the Lease, unless the Lessor and Lessee agree otherwise, that property will be considered abandoned and will become the property of the Lessor.
- 8.3. The Lessee indemnifies the Lessor against any liabilities arising from the use of the Land by the Lessee except to the extent that the liability is caused by the negligent act or omission by the Lessor or its servants or agents.
- 8.4. The Lessee:-
- (a) uses and occupies the Land at its own risk; and
 - (b) releases the Lessor from all liabilities arising from events occurring on the Land or from any omission on the part of the Lessee or its servants or agents except in those cases where the liability is caused by the Lessor or a person for whom the Lessor is responsible.
- 8.5. The Lessee expressly acknowledges and agrees that the terms of this Lease will not under any circumstances be varied, or the Lessee's obligations suspended or deferred, due to the impact of the coronavirus disease 2019 (more commonly known as Covid-19) or any of its variations or mutations.

9. EVENTS OF DEFAULT and LESSOR'S RIGHTS

- 9.1. If the Lessee:-
- (a) does not pay the Rent by the day on which it falls due for payment;
 - (b) assigns or underlets or parts with the possession of the Land or any part except as permitted by the Lease;
 - (c) does not meet its obligations under this Lease;

- (d) being an individual -
 - (i) becomes bankrupt;
 - (ii) takes or tries to take advantage of part 10 of the *Bankruptcy Act*;
 - (iii) makes an assignment for the benefit of his or her creditors; or
 - (iv) is unable to pay his or her debts when they fall due.
- (e) being a corporation -
 - (i) has an order made or a resolution passed to wind it up except for reconstruction or amalgamation;
 - (ii) goes into liquidation;
 - (iii) is placed under official management;
 - (iv) has a receiver, including a provisional receiver, or receiver and manager of any of its assets, or an administrator appointed;
 - (v) has an inspector appointed under the Australian Securities Commission Act; or
 - (vi) without the Lessor's written consent, there is a different person in effective control of the Lessee as a result of changes in -
 - A. membership of the company or its holding company;
 - B. beneficial ownership of the shares in the company or its holding company; or
 - C. beneficial ownership of the business or assets of the company.

then the Lessor may enter upon the Land or any part of the Land in the name of the whole, and:

- (f) the tenancy absolutely determines;
 - (g) the Lessor may have the benefit of any licences relating to the Land; and
 - (h) the Lessor may hold, occupy and enjoy the Land as though this Lease had not been executed but without prejudice to:
 - (i) any right of action or remedy of the Lessor; or
 - (ii) any right of the Lessor in respect to any breach.
- 9.2. For the purpose of Section 146(1) of the *Property Law Act 1958*, 14 days is fixed as the period within which the Lessee must remedy a breach capable of remedy and make reasonable compensation in money.
- 9.3. Even though the Lessor does not exercise its rights under this Lease on one occasion, it may do so on the later occasion.
- 9.4. Breach by the Lessee of any of the following clauses of this Lease is a breach of an essential term and constitutes repudiation: 3.1(a), 3.1(b) 3.1(i), 3.1(k), 3.1(l), 3.1(m), 3.2(a), 3.2 (e), 3.2(f), 5.1.5.6, 7, 13 and 15. Other obligations under this Lease may also be essential.
- 9.5. The Lessor may claim damages against the Lessee for the entire Lease Term:
 - (a) including the periods before and after the Lessee has vacated the Land; and
 - (b) whether proceedings are instituted either before or after such conduct.
- 9.6. If the Lessee vacates the leased premises, the Lessor must take reasonable steps to mitigate its damages and to endeavour to Lease the Land at a reasonable rent and on reasonable terms but such mitigation must not by itself constitute acceptance of the Lessee's breach or repudiation or a surrender by operation of law.

10. OVERHOLDING

- 10.1. If the Lessee continues to occupy the Land after the end of the Lease with the consent of the Lessor, it will do so as a Lessee from month to month and the terms of this Lease will apply to the tenancy as far as they may be applicable.
- 10.2. Either party may end the month to month tenancy by giving one month's written notice to the other at any time.
- 10.3. The monthly rent starts at one-twelfth of the annual rent which the Lessee was paying immediately before the Term ended unless a different rent has been agreed.
- 10.4. The Lessor may increase the monthly rent by giving the Lessee one month's written notice.

11. FURTHER TERM

- 11.1. The Lessee has the option to renew this Lease for the term or terms stated in item 10 and the Lessor must renew the Lease for that further term or those further Terms if:
 - (a) there is not an un-remedied breach of this Lease by the Lessee of which the Lessor has given the Lessee written notice;
 - (b) the Lessee has not persistently committed breaches of this Lease of which the Lessor has given written notice during the Term; and
 - (c) the Lessee has requested the renewal in writing not more than 6 months and not less than 4 months before the end of the Term.
- 11.2. The Lease for the further term:
 - (a) starts on the day after this Lease ends;
 - (b) has a starting Rent determined in accordance with clause 12; and

- (c) must contain the same terms as this Lease (as varied by agreement) but with no option for renewal after the last option for a further Term stated in item 9 has been exercised.

12. RENT REVIEW

- 12.1. The Rent is to be reviewed at the time and in the manner as set out in Item 13.
- 12.2. The Rent for the further Term must not be less than a 3% increase on Rent being paid immediately prior to the commencement of the further Term.

13. GST

- 13.1. Expressions used in this clause and in the GST Act have the same meanings as when used in the GST Act unless the context otherwise requires.
GST Act means *A New Tax System (Goods and Services Tax) Act 1999* (as amended).
- 13.2. Except where express provision is made to the contrary, and subject to this clause 13.2, all amounts or other consideration payable by any party under this Lease represent the value of any taxable supply for which payment is to be made.
- 13.3. Subject to clause 13.5, if a party makes a taxable supply in connection with this Lease for a consideration which, under clause 13.2, represents its value then the recipient the taxable supply must also pay at the same time, and in the same manner as the value is otherwise payable, the amount of any GST payable in respect of the taxable supply.
- 13.4. If this Lease requires the Lessee to pay or contribute to an amount paid or payable by the Lessor in respect of an acquisition from a third party for which the Lessor is entitled to claim an input tax credit, the amount required to be paid or contributed by the Lessee will be the value of the acquisition by the Lessor plus, if the Lessor's recovery from the Lessee is a taxable supply, any GST payable under clause 13.3.
- 13.5. A party's right to payment under clause 13.3 is subject to a valid tax invoice being delivered to the recipient.

14. NOTICES

- 14.1. A notice given under this Lease may be given by pre-paid, post, delivery, email or any other manner authorised by law or the Supreme Court for service of documents, including any manner authorised for service on or by a legal practitioner to the party's last known address, registered office or (if to the Lessee) at the Land.
- 14.2. Notices delivered by post will be taken to have been received on the second business day after posting, unless proved otherwise.
- 14.3. A notice delivered or sent by email are taken to have been served or given at the time of receipt as specified in section 13A of the *Electronic Transactions (Victoria) Act 2000*.

15. SECURITY DEPOSIT

- 15.1. The Lessee must pay a security deposit to the Lessor of the amount stated in item 12 and must maintain the security deposit at that amount.
- 15.2. The security deposit must be by way of an unconditional Bank Guarantee with no expiry date, issued by an authorised deposit-taking institution and on terms acceptable to the Lessor acting reasonably.

16. ENTIRE AGREEMENT

- 16.1. This Lease contains the whole agreement between the parties. Neither party is entitled to rely on any warranty or statement in relation to:-
 - (a) the conditions on which the Lease has been agreed;
 - (b) the provisions of the Lease;
 - (c) the quality or area of the Land and the buildings and improvements; and/or
 - (d) the suitability of the Land for the permitted use.
- 16.2. The Lessee accepts the Land in the condition it is in at the date of this Lease and acknowledges that there were no promises, representations, warranties or undertakings whether oral or written given by or on behalf of the Lessor in respect of the suitability of the Land for the permitted use.

17. DISPUTE RESOLUTION

- 17.1. A party must not commence court proceedings (except urgent interlocutory relief) on any matter relating to this Lease without first attempting to resolve the dispute by the dispute resolution procedure set out in this clause, except disputes about:
- (a) un-paid Rent and interest charged on it;
 - (b) review of Rent; or
 - (c) a dispute to be resolved in another way prescribed by any other provision of this Lease.
- 17.2. The mediation procedure is:
- (a) Any party may service a mediation notice on the other party, such notice must state that a dispute has arisen and identify what the dispute is.
 - (b) the parties must jointly request appointment of a mediator. If the parties fail to agree on the appointment within 7 days of service of the mediation notice, either party may apply to the President of the Law Institute of Victoria or the nominee of the President to appoint a mediator.
 - (c) once the mediator has accepted the appointment the parties must comply with the mediator's instructions.
 - (d) if the dispute is not resolved within 30 days of the appointment of the mediator, or any other period agreed by the parties in writing, the mediation ceases.
 - (e) the mediator may fix the charges for the mediation which must be paid equally by the parties.
 - (f) if the dispute is settled, all parties must sign the terms of agreement and these terms are binding on the parties.
 - (g) the mediation is confidential and —
 - (i) statements made by the mediator or the parties, and
 - (ii) discussions between the participants to the mediation, before after or during the mediation, cannot be used in any legal proceedings.
 - (h) it must be a Term of the engagement of the mediator that the parties release the mediator from any court proceedings relating to the Lease or the mediation.
 - (i) the mediator is not bound by the rules of natural justice and may discuss the dispute with a party in the absence of any other party.

18. DAMAGE OR DESTRUCTION

- 18.1. If the Land or any part of the Land is during the Term destroyed or rendered unfit for use by fire storm or tempest then the Rent or a fair and just proportion of the Rent according to the nature or extent of the damage sustained must be suspended until the Land must be rendered fit for occupation and use.

19. GUARANTEE

- 19.1. The Guarantor in consideration of the Lessor having entered into this Lease at the Guarantor's request —
- (a) guarantees that the Lessee will perform all its obligations under this Lease for the Term and any renewed Term and during any period of over-holding after the end of the Term of the Lease;
 - (b) must pay on demand any amount which the Lessor is entitled to recover from the Lessee under this Lease; and
 - (c) indemnifies the Lessor against all loss resulting from the Lessee's failure to perform its obligations under it or from this Lease being or becoming unenforceable against the Lessee.
- 19.2. The liability of the Guarantor will not be affected by:-
- (a) the grant to the Lessee, the Guarantor or any other person of any time, waiver or other indulgence or concession or any whole or partial discharge or release of the Lessee, the Guarantor or any other person;
 - (b) any transaction or arrangement that may take place between the Lessor and the Lessee, the Guarantor or any other person;
 - (c) the liquidation of the Lessee, the Guarantor or any other person;
 - (d) the fact that the Lessor or any other person takes or fails to take any other guarantee or security from any person;
 - (e) the fact that the Lessor or any other person exercises or refrains from exercising any other guarantee or security or any of the rights, powers or remedies conferred on it by law or by any agreement, or fails to recover, by exercise of any such rights, any moneys owing to the Lessor by the Lessee;
 - (f) the variation (including a variation which increased the guaranteed moneys or the Lessee's obligations), replacement, extinguishment, loss, release, discharge, abandonment or transfer either in whole or in part of any agreement or document relating to the Lessee's obligations including any other guarantee or security now or in the future held by the Lessor from any person;
 - (g) the Lessee's obligations or the Guarantor's obligations or the obligations of any other person under any agreement or document relating to the Lessee's obligations or the Guarantor's obligations, including any other guarantee or security, ceasing or being or becoming wholly or partially illegal, void, voidable or unenforceable;
 - (h) the failure by the Lessor to give notice to the Guarantor of any default by the Lessee or any other person;
 - (i) any legal limitation, disability, incapacity or other circumstance related to the Guarantor, the Lessee or any other person;
 - (j) the fact that any person who was intended to be bound as a Guarantor or surety in respect of the Lessee's obligations does not become bound or, having done so, ceases to be so bound;

- (k) any laches, acquiescence, delay, acts, omissions or mistake on the part of, or suffered by the Lessor or any other person, in relation to this deed or any other guarantee, security interest, agreement or negotiable instrument;
- (l) the Lessor becoming a party to any compromise or scheme or assignment of property by or relating to the Lessee or the Guarantor or the acceptance by the Lessor of any dividend or sum of money under any compromise, scheme or assignment;
- (m) any judgment or rights which the Lessor may have or exercise against the Lessee, the Guarantor or any other person;
- (n) if the Lessee or the Guarantor is a member of any partnership, any change in the membership of that partnership;
- (o) if the Guarantor or the Lessee is a trustee, any breach of trust or any variation of the terms or determination of the trust;
- (p) the Lessor agreeing to any assignment by the Lessee for the benefit of creditors or to any scheme of arrangement or deed or composition under the Corporations Law or the Bankruptcy Act;
- (q) the Lessor accepting a repudiation of the Lease by the Lessee and the guarantee given under this deed extends to any amounts payable by the Lessee as damages or otherwise and whether payable under the Lease or under any action taken by the Lessor;
- (r) any rights, claims or actions which the Lessee may have against the Lessor;
- (s) any act or omission of the Lessor, whether in relation to the Lease or otherwise, which but for this paragraph would have the effect of releasing the Guarantor;
- (t) any judgment, finding or decision by a court, arbitrator or other person in favour of the Lessee;
- (u) any transfer or variation of this Lease, but if this Lease is transferred the Guarantor's obligations, other than those which have already arisen, end when the Term ends and do not continue into a Term renewed by a new Lessee nor a period over-holding; or
- (v) the failure of any Guarantor to sign this document.

19.3. The Guarantor agrees that:

- (a) the Lessor may retain all money received including dividends from the Lessee's bankrupt estate, and need allow the Guarantor a reduction in its liability under this guarantee only to the extent of the amount received;
- (b) the Guarantor must not seek or to recover money from the Lessee to reimburse the Guarantor for payments made to the Lessor until the Lessor has been paid in full;
- (c) the Guarantor must not prove in the bankruptcy or winding up of the Lessee for any amount which the Lessor has demanded from the Guarantor; and
- (d) the Guarantor must pay the Lessor all money which the Lessor refunds to the Lessee's liquidator or trustee in bankruptcy as preferential payments received from the Lessee.

19.4. If any of the Lessee's obligations are unenforceable against the Lessee, then this clause is to operate as a separate indemnity and the Guarantor indemnifies the Lessor against all loss resulting from the Lessor's inability to enforce performance of those obligations. The Guarantor must pay the Lessor the amount of the loss resulting from the unenforceability.

19.5. If there is more than one Guarantor, this guarantee binds them jointly and each of them individually.

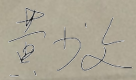
- 19.6. The Lessor may assign or transfer all or any part of its rights or obligations under this deed without the consent of the Guarantor. The Lessor must give the Guarantor notice of any assignment or transfer as soon as practicable but the failure of the Lessor to give any notice does not affect or discharge any of the Guarantor's obligations.
- 19.7. The Lessor's determination of any calculation for the purpose of this guarantee (including, without limitation of amounts owing by the Guarantor) will be conclusive in the absence of manifest error. The Lessor must provide a certificate to the Guarantor showing the Lessor's calculation and including relevant data or information used in making the calculation.

20. MISCELLANEOUS

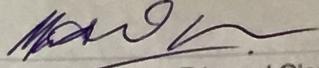
- 20.1. This Lease is subject to the laws of the state of Victoria and the parties submit to the non-exclusive jurisdiction of Victoria.
- 20.2. If any provision of this Lease does not comply with any law, then the provision must be read-down so as to give it as much effect as possible. If it is not possible to give the provision any effect at all then it must be severed from the rest of the Lease.
- 20.3. Any amendments to this Lease must be in writing and signed by the parties.
- 20.4. The failure or delay to exercise or partial exercise of a party of any rights does not constitute a waiver of those rights.

EXECUTED AS A DEED ON

Executed by CREEKSIDE HILLS PTY LTD)
(ACN: 623 182 221) in accordance)
with s127 of the Corporations Act 2001 (Cth))

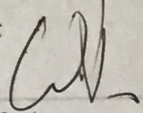

Signature of Shaowen Huang
sole director/ secretary

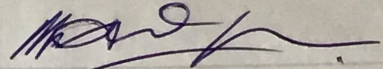
Executed by HAVELOCK AG SERVICES)
PTY LTD (ACN: 084 095 269) in accordance)
with s127 of the Corporations Act 2001 (Cth))


Signature of Matthew Edmund Cleve
sole director/ secretary

22.07.2025

SIGNED SEALED and DELIVERED by)
MATTHEW EDMUND CLEVE in the)
presence of:)


Signature of witness


Signature of Matthew Edmund Cleve

22.07.2025

William BAKER
Name of witness (print)

24 Rye Court
Romsby Vic
3434

SCHEDULE

Item 1	Lessor	Creekside Hills Pty Ltd ACN 623 182 221 of 486 Burke Road Camberwell Victoria 3124
Item 2	Lessee	Havelock Ag Services Pty Ltd ACN 084 095 269 of 43 Gap Road Sunbury Victoria 3429
Item 3	Land	'Chintin Grange' 3054 Romsey Road Chintin VIC 3756 The whole of the Land comprised in Certificates of Title: 1. Volume 11216 Folio 864 2. Volume 11216 Folio 865 3. Volume 11216 Folio 866 4. Volume 11216 Folio 885 5. Volume 11216 Folio 886 6. Volume 11216 Folio 887 7. Volume 11216 Folio 867 8. Volume 11216 Folio 888 9. Volume 11216 Folio 263 10. Volume 9907 Folio 345 11. Volume 9907 Folio 346 12. Volume 9907 Folio 351 13. Volume 9907 Folio 354 14. Volume 9907 Folio 355 15. Volume 9959 Folio 357 16. Volume 9959 Folio 358 17. Volume 10191 Folio 652
Item 4	Rent	\$130,000 (Plus GST) per annum
Item 5	Payment of Rent	Payable one (1) month in advance, initially being \$11,916.66 (inclusive of GST)
Item 6	Term	Three (3) years
Item 7	Commencement Date	1 March 2025
Item 8	Lessor's Installations	Not applicable
Item 9	Use of Land	Farming purposes, including cropping and grazing
Item 10	Further Term	NIL
Item 11	Guarantor	MATTHEW EDMUND CLEVE of 2835 Romsey Road Springfield Victoria 3434
Item 12	Security	Bank Guarantee equal to 3 months rent
Item 13	Rent Review	Fixed 3% increase in Rent on each anniversary of the Commencement Date